

Roundtable on
**Feminist Perspectives
on Social Media
Governance**
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Concept Note

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April 19-20, 2022

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Organized by:



INTERNETLAB

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1. Background

Recent studies by [the Web Foundation and World Association of Girl Guides and Girl Scouts](#), [Amnesty International](#) and [UN Women](#) demonstrate how misogyny is rapidly proliferating in the digitally-mediated public sphere. The BBC Panorama study of [October 2021](#) found that 97 percent of accounts sending misogynistic abuse on Twitter and Instagram remain on the sites even after being reported. The study also noted that content-feeds on Facebook and Instagram actively push misogynistic content to men who send abusive content to women, radicalizing them further. Algorithmically-propelled sexism and misogyny are poised to get worse in the leap to the metaverse – the 3D version of the Internet in which experiences will be much more visceral – unless we rapidly take corrective action.

As Irene Khan, UN Special Rapporteur on the promotion and protection of freedom of opinion and expression, has observed, sexism and misogyny is a form of [gendered censorship](#). The ubiquity and normalization of misogynistic abuse online, seems to suggest that it is a form of [hate crime](#), a weapon to undermine women's human rights by intimidating, silencing, and driving out women from public life. Women journalists, politicians, human rights defenders, and feminist activists are deliberately targeted in coordinated troll attacks. In fact, the political hate speech that women in public life receive has been recognized as [being qualitatively different](#) from what their male counterparts receive. The abuse and gendered disinformation targeted at female politicians is primarily focused on their identity as women, and as a means of enforcing adherence to established norms of sexual propriety, and not on their political views, unlike in the case of male politicians.

Just like other manifestations of gender subordination in patriarchy, misogynistic hate [intersects with](#) various social markers – class, race, caste, gender identity, sexual orientation, disability, religious belief, ethnicity, nationality, and so on – rendering certain groups of women additionally vulnerable. The physical, psychological, emotional and other harms that women and gender minorities experience in the context of such pervasive online misogyny are an assault on their privacy, autonomy, and dignity, undermining their first order right to public participation. The continuum of violence, offline-online, also erodes hard-won gains for women's substantive equality.

Even as sexist hate and misogyny spiral out of control in the digitally-mediated public sphere, it is evident that states and platform companies are not doing enough to address the issue. There is a lack of an

internationally agreed upon legal instrument with a clear definition of ‘sexism’ and a normalization of misogynistic discourses in patriarchal society. This has meant that a majority of national legal frameworks [do not deal with sexist hate speech](#) with the same seriousness that they accord other forms of hate, such as racial and religious vilification. While legal frameworks may not suffice as a guarantee of protection of these groups, they serve as crucial institutional responses to social discrimination and inequality. Non-binding frameworks such as [Recommendation CM/Rec \(2019\) on Preventing and Combating Sexism](#) (of the Committee of Ministers, Council of Europe) have not managed to lower the threshold for criminalization of sexist hate speech. Consequently, harmful practices such as gender-trolling continue undetected by the legal radar. Platform responses have also been found hugely wanting in responding to user complaints about misogynistic hate. The inconsistent implementation of rules on hate speech and the lack of gender-disaggregated information on content moderation decisions in transparency reporting are [serious lacunae](#) in the policies and practices of platform companies.

2. Roundtable on Social Media Governance

Proceeding from this starting point, IT for Change and InternetLab are co-organizing a roundtable to catalyze a productive debate revolving around the central question: what new imaginaries of social media governance will be adequate to eradicate the unfreedoms arising from misogyny in online communications agora?

The roundtable intends to explore the following sub-questions:

- What do empirical studies of platform regulation (and self-regulation) tell us about addressing sexism and misogyny online?
- What national legal-institutional frameworks may be appropriate to check gendered censorship and promote gender-equal participation in the online public space?
- What kind of global responses may be relevant towards nurturing gender-inclusive online publics?

Over two half days on 19 and 20 April, 2022 (5:30 PM IST/9 AM BRT), the roundtable will bring together around 20 academics, lawyers, digital rights activists, and scholar-practitioners committed to feminist

politics, to collectively reflect on, discuss, and debate these questions, in order to weave a rich tapestry of perspectives on future directions for social media governance.

We list below some thematic areas that we are particularly eager to tackle. These are only indicative, and intended to be starting points. We welcome conceptual reflections that are empirically grounded in comparative legal analysis and case studies.

Theme 1. Contemporizing the Law

The permeability that networked technologies bring to previously watertight boundaries of public and private spaces presents new challenges for governance. Digital co-presence and asynchronous many-to-many communication have enabled new modes of expression, identity formation, solidarity building, and political mobilization no longer confined by the finitudes of Cartesian space-time. At the same time, and especially in the context of social media, they have given rise to the proliferation of gender-trolls, hate bots, gendered misinformation generators, and homo-social algorithmic enclaves that have a range of inimical consequences for gender equality. Yet, socio-legal imaginaries of public sphere governance seem to be stuck in the past. The unprecedented problems afflicting the online public sphere in the rising tide of misogyny and the challenge of reclaiming democratic and feminist space in this context require a careful assessment of possible legal-institutional interventions.

A few themes we would like discussed:

- i. Conceptions of sexist hate speech in the law (including comparative analysis)
- ii. Conceptions of misogyny in the law (including possible absences of this theme in legislation)
- iii. Negotiating free speech thresholds in the techno-spatial dimensions of the digital
- iv. Intersectionality and constitutional-legal principles to address sexism/misogyny
- v. Implications of criminal law reform for containing/redressing misogyny
- vi. Content governance regimes – implications for freedom/censorship
- vii. Procedural law and institutional arrangements for redressal

Theme 2. No Safe Harbor for Misogyny

Evidence increasingly suggests that treating platform companies as neutral conduits of content is enabling them to evade all accountability to users for building safe and inclusive communication spaces. It is imperative that platforms' duty of care to prevent sexism and misogyny be framed as a binding obligation. Big platforms that have a global presence do have a decisive influence on social behavior. Yet, the growing influence of smaller, local/ regional language platforms needs to be spotlighted and examined.

A few themes we would like discussed:

- i. Rethinking intermediary liability – e.g., from safe harbor to platform liability for misogyny; differentiated governance approaches by type and size of platform
- ii. Taking stock of community standards
- iii. Platform 'duty of care' – studies of transparency reports, explainability of content moderation decisions, response to user complaints
- iv. Automated content moderation – designing for human-in-the-loop
- v. Alternative platform protocols / artisanal models (including different content moderation approaches)

Theme 3. Political Economy of Platformized Hate

World-over, governments and dominant social media companies are locked in a power tussle. Companies often complain of extra-legal pressure to remove content deemed offending, while governments are eager to quell content virality fueled by opaque social media algorithms. Social media companies are also often hand-in-glove with political elites, selectively enforcing rules against hate speech and keeping decisions regarding content moderation inscrutable to ordinary users. In this context, what should be a feminist conception of access to justice? How can feminist ideals of justice inform public sphere governance in the trans-local public agora, controlled by capitalist platforms?

A few themes we would like discussed:

- i. Feminist theories of justice with regard to online misogyny (how can rights be culturally grounded?)

- ii. International law / global benchmarking to hold transnational platform companies accountable
- iii. Algorithmic accountability – AI regulation to check viral hate
- iv. How market interests of platforms shape investment trajectories in algorithmic tools for sexist hate speech detection in non-dominant languages
- v. State sovereignty and women's human rights
- vi. Regulating the platform economy for health of the public sphere

Theme 4. Towards a Feminist Online Public Sphere

We are increasingly beginning to see highly context-specific and overlapping ways in which online misogyny in the form of hateful speech, trolling, prejudicial gender stereotypes, and forms of gendered disinformation renders the public sphere particularly hostile toward women in public-political life – including journalists, activists and politicians. We are interested in untangling these threads by inviting scholars to present empirical, region-specific ethnographic work that unpacks the complex relationship between disinformation, hate speech and misogyny, contemplating how a democratic online public sphere founded on feminist principles can be built.

A few themes we would like discussed:

- i. The manner in which political contexts influence the way women are targeted by hate speech
- ii. Conceptual connections between disinformation, political violence and gender identity.
- iii. Legal framings on misogynistic speech, political violence and disinformation, and how the tension between disinformation and women's freedom of expression and public participation may be tackled by the law.
- iv. The role of platforms in perpetuating hate, disinformation, and gender-based violence and recommendations for platform policies that are sensitive to cultural specificities.

3. Your Participation in the Roundtable

We invite you to contribute a think-piece/scholarly essay of 3,000-4,000 words, taking on the central questions for the roundtable described above.

Timeline	Key Dates
300 words abstract with a working title and a writing sample	11 March 2022
Key arguments/extended outline	4 April 2022
Roundtable	19 - 20 April 2022
Submission of essay	2 May 2022
Comments and feedback	2 - 15 May 2022
Submission of essay post feedback	23 May 2022
Editorial inputs and finalization	June 2022
Release of collected essays	July 2022
Publication on Bot Populi	August 2022

We are able to offer an honorarium of 300 USD for your essay.